

# U.P. Zila Panchayats (Formation of Committees) Rules, 1997

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State of Uttar Pradesh - Act

U.P. Zila Panchayats (Formation of Committees) Rules, 1997

UTTAR PRADESH

India

U.P. Zila Panchayats (Formation of Committees) Rules, 1997

Rule U-P-ZILA-PANCHAYATS-FORMATION-OF-COMMITTEES-RULES-1997 of 1997

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U.P. Zila Panchayats (Formation of Committees) Rules, 1997

Published vide Notification No. 2422/33-2-97-16-G-96, dated 23rd May, 1997 and published in the U.P. Gazette (Extraordinary), dated 23rd May, 1997

In exercise of the powers under Section 237 of the Uttar Pradesh Kshettra Panchayats and Zila Panchayats Adhiniyam, 1961 (U.P. Act No. 33 of 1961), read with sub-section (1) of Section 65, sub-sections (1) and (3) of Section 68. Section 72 and Section 74 of the said Adhiniyam and in supersession of U.P. Zila Parishad (Formation of Committees) Rules, 1963 the Governor of Uttar Pradesh is pleased to make the following rules :

1.

Short title and commencement.

(1)

These rules may be called the Uttar Pradesh Zila Panchayats (Formation of Committees) Rules, 1997.

(2)

They shall come into force at once.

2.

Definitions.

- In these rules, unless there is anything repugnant in the subject or context,-

(i)

"Act" means the Uttar Pradesh Kshettra Panchayats and Zila Panchayats Adhiniyam, 1961;

(ii)

"Zila Panchayat" or "Panchayat" means a Zila Panchayat constituted under Section 17 of the Act;

(iii)

"Adhyaksha" means the Adhyaksha of a Zila Panchayat;

(iv)

"Form" means a Form given in the Schedule appended to these rules; and

(v)

"Section", "sub-section" and "clause" means the section, sub-section and clause, as the case may be of the Uttar Pradesh Kshettra Panchayats and Zila Panchayats Adhiniyam, 1961.

3.

Meeting for election of member of the committees specified in Section 64 (1).

- The member of the committees specified in sub-section (1) of Section 64 shall be elected at meeting or meetings of the Zila Panchayat to be held for the purpose at the office of the Zila Panchayat.

4.

Notice of the meeting.

(1)

The Adhyaksha shall convene one or more meetings of the Panchayat to elect the members of the committees mentioned in sub-section (1) of Section 64 and the notice issued to the members shall state the purpose for which the meeting is being called, the number of members under clause (d) of sub-section (1) of Section 66 or/and sub-section (1) of Section 67, the place at, the date on and the hours during which nomination shall be received and shall be scrutinized and the poll, if necessary, shall be taken.

(2)

The notices issued under sub-rule (1) shall be sent by post under certificate of posting to the last known address of each member of the Panchayat and a copy thereof shall also be pasted at the office of the Panchayat.

5.

Nominations and their scrutiny.

(1)

As soon as the meeting commences, the Adhyaksha shall invite nomination in Form I from the members present :  
Provided that if less than half the total number of the members for the time being are present, the meeting shall be adjourned and fresh notice shall be sent in the manner provided in Rule 14 :  
Provided further that in case the required number of members fails to attend the second meeting, the meeting may be adjourned but no quorum shall be necessary for such adjourned meeting.

(2)

Immediately after the time for receipt of nomination papers is over, the Adhyaksha shall scrutinize the nominations received within the prescribed time limit and may reject those which are not in accordance with the provision of the Act or these Rules.

(3)

The Adhyaksha shall, immediately after the scrutiny of the nominations and withdrawals, announce the names of the validly nominated candidates in Form II and shall also cause a list thereof to be published by affixing it on the notice board of the Panchayat.

6.

Procedure after publication of the list of validly nominated candidates.

(1)

If the number of the candidates for a committee is equal to the number of members to be elected the Adhyaksha shall

declare all such candidates to be duly elected members of that committee.

(2)

If the number of the candidates for a committee is less than the number of the members to be elected, the Adhyaksha shall declare all such candidates duly elected on that committee. Steps shall be taken afresh for the election of the remaining number of members.

(3)

If the number of the candidates for a committee exceeds the number of members to be elected, an election shall be held as provided hereinafter.

7.

Manner of voting.

- The election will be held in accordance with the system of proportional representation by means of the single transferable vote and the voting at such election shall be, by secret ballot. Votes shall be cast in person and no votes shall be received by proxy.

8.

Ballot papers.

- The ballot papers to be used at the election shall be in Form III and shall contain the name of the candidates in the order in which they appear in the list of valid nominations published under Rule 5 (3).

9.

Procedure before the commencement of poll.

(1)

The Adhyaksha shall immediately before the commencement of the poll, allow inspection of the ballot box to be used to at the poll to such members as may be present.

(2)

The Adhyaksha shall then secure and seal the box in such manner that the list the insertion of ballot papers remains open.

10.

Procedure for giving ballot papers.

(1)

The Adhyaksha shall have before him a list of members of the Zila Panchayat.

(2)

Immediately before the ballot paper is delivered to a member, a mark shall be placed against his name in that list.

(3)

The member shall sign his name in the list in token of the receipt of the ballot paper.

(4)

Where poll is being taken for more than one committee, the ballot papers in respect of all such committee may be delivered under sub-rule (3) together.

11.

Manner of recording votes.

(1)

Every members shall have as many preferences are candidates, but no ballot paper shall be considered invalid solely on the ground that all such preferences are not marked.

(2)

A member in giving his vote-

(a)

shall mark on his ballot paper number 1 in the space opposite the name of candidate whom he chooses for his first preference; and

(b)

may, in addition, make as many subsequent preferences as he wishes by marking on his ballot paper numbers 2, 3, 4 and so on in the space opposite the names of other candidates in order of his preference.

(3)

The Adhyaksha shall, if requested by a member, explain to him the instructions contained on the ballot paper for

recording of votes.

(4)

For making his preference, a member shall enter in a polling compartment provided at the place of polling and screened from observation.

(5)

After the preferences have been marked, the member shall fold the ballot paper and put it into the ballot box through the list provided for the purpose.

(6)

Where poll is being taken for more than one committee together it may be so arranged that the ballot papers in respect of all such committees, may, after preferences have been marked thereon, be put in the same ballot box.

12.

Procedure at the counting.

(1)

As soon as the poll is closed, the Adhyaksha shall, in the presence of members present, proceed to count the votes.

(2)

The Adhyaksha shall open the ballot box; and

(a)

count the number of ballot papers taken out therefrom and record it in a statement;

(b)

scrutinize the ballot papers and separate those which in his opinion are valid, from those which in his opinion are invalid endorsing on the latter the word "rejected" with reasons for such rejection; and

(c)

arrange all the valid ballot papers in parcels according to the first preference recorded for each candidate.

(3)

A ballot paper shall be rejected as invalid on which :

(a)

the number 1 is not marked; or

(b)

the number 1 is marked opposite the name of more than one candidate or is so marked as to render it doubtful to which candidate it is intended to apply; or

(c)

the number 1 and some other numbers are marked opposite the name of the same candidate; or

(d)

any mark is made by which the vote may afterwards be identified.

13.

Determination of result.

- After all the valid ballot papers have been arranged in parcels according to the first preference recorded for each candidate, the Adhyaksha shall proceed to determine the result of the voting in accordance with the instructions contained in Schedule II to these rules.

14.

Declaration of result.

- When the counting is completed and the result of voting has been determined, the Adhyaksha shall forthwith-

(a)

announce the result;

(b)

report the result to the District Magistrate and the Divisional Commissioner;

(c)

prepare and certify the result of the election in Form IV; and

(d)

publish by affixing at the notice board of the Panchayat a notification signed by him stating names of the persons elected as members of a particular committee.

15.

Ballot papers in respect of more than one committee.

- Where poll has been taken for more than one committee together and the ballot papers for all such committee have been put in the same ballot box, the Adhyaksha shall before proceeding to take action as described in clauses (b) and (c) of sub-rule (2) of Rule 12, separate the ballot papers relating to each of such committee from those for the others. Each such lot shall then be dealt with separately in accordance with the provisions of Rules 12, 13 and 14.

16.

Manner of filling of casual vacancies.

- The procedure to fill casual vacancies in the membership of a committee shall, as far as may be, be the same as provided in the foregoing rules.

17.

The terms of member.

- The determination of the members who shall retire one year after their election and of the members who shall retire two years after election under sub-section (3) of Section 68 shall be made in the first meeting of the committee by drawing of lots in the following manner :

(i)

As soon as the meeting commences the Adhyaksha shall prepare before the members of the committee as many slips as is the number of members of that committee. The said slips shall contain the names of members each containing one name and shall be placed in a box.

(ii)

The Adhyaksha shall also prepare slips of the same shape and size of the same shape and size equal to the two-thirds of the total number of members and shall have written on them number 1, 2, 3 etc. These slips shall be placed in another box.

(iii)

The Adhyaksha shall thoroughly mix the slips in each of the two boxes.

(iv)

The Adhyaksha shall then draw a slip from the box containing the slip bearing names of members and another slip from the box containing slips bear numbers. The number inscribed on the latter slip shall be entered in the list to be prepared for the purpose against the name of the member whose slip has been drawn. The two type of slips shall continue to be drawn until all the slips bearing numbers have been exhausted.

(v)

The member who has drawn number 1 in case of committee consisting of three members and the members who have drawn numbers 1 and 2 in case of a committee consisting of six numbers and numbers 1, 2 and 3 in case of a committee consisting of the nine members, shall retire one year after the respective dates of their election as members of the committee.

(vi)

The members who has drawn number 2 in case a committee consisting of three members and the members who have drawn numbers 3 and 4 in case of a committee consisting of six members and numbers 4, 5 and 6 in case of a committee consisting of nine members, shall retire two years after the respective dates of their election as members of the committee.

(vii)

The remaining members of the committee shall retire three years after respective dates of their election as members of the committee.

(viii)

The vacancies arising out of the retirement of members shall be filled in the manner provided in Rule 16.

(ix)

The terms of every member elected to fill a vacancy caused by such retirement shall expire at the expiry of the terms of the committee or at the expiry of three years from the date of his election whichever is earlier.

(x)

The term of member of a committee to fill a vacancy caused otherwise than by such retirement be for the residue of the term of his predecessor.

18.

Disputes relating to election.

- Any petition relating to the result of the election shall if required within a period of six weeks from the date of election, be referred by the Adhyaksha, to the Commissioner of the division concerned, whose decision shall be final and binding.

19.

Custody inspection and disposal of election papers.

(1)

The Adhyaksha shall arrange to keep the ballot papers and other papers to the election in safe custody for a period of one year from the date of the election where after they shall subject to any direction to the contrary by a competent Court or the Commissioner of the division, be destroyed.

(2)

All election papers other than the ballot paper shall be open to inspection subject to the payment of a fee at the rate of Rs. ten per day on which inspection is made.

20.

Appointment of other committee.

- A Zila Panchayat may, and where so required by the State Government shall, establish one or more committees, under sub-section (1) of Section 65, subject to the following conditions :

(a)

the number of member of the committee shall be specified in the regulation shall not exceed six, if the total number of member of the Zila Panchayat is up to forty and nine if such number is above forty;

(b)

an officer of the Zila Panchayat nominated by the committee in this behalf shall serve as a non-member Secretary of the committee;

(c)

the function assigned to each such committee shall be distinct and complete whole and shall not overlap the function of any other committee;

(d)

the regulations made by the Panchayat in this behalf shall provide for the term of any committee, which shall not be longer than one year;

(e)

the Chairman and Vice-Chairman of each such committee shall be elected by the members of the committee out of themselves :

Provided that where the Panchayat so desires it may appoint the Adhyaksha as Chairman of any such committee and in that case he shall be an ex officio member of the committee.

21.

Right of Adhyaksha to attend meeting of committees.

- The Adhyaksha of a Zila Panchayat may attend any meeting of any committee thereof irrespective of the fact that he is not a member or Chairman of such Committee and address it on any subject under its consideration or draw its attention to any matter of importance falling within its purview but shall not vote upon or propose a resolution at such meeting.

22.

Powers, duties and functions of Shiksha Evam Jan Swasthya Samiti.

- The Shiksha Evam Jan Swasthya Samiti of a Zila Panchayat may exercise and shall perform the following powers, duties and functions-

(i)

such powers, duties and functions as are required to be exercised or performed by it by or under the Act;

(ii)

watching and evaluating the progress of educational activities of the Zila Panchayat or the Kshettra Panchayats including Physical culture:

(iii)

watching the progress of the medical and health activities of the Zila Panchayat and Kshettra Panchayat and supervising generally the curative and preventive measures undertaken on behalf of the Zila Panchayat;

- (iv) formulating proposals about the maintenance expansion and betterment of medical and public health facilities including water supply and sanitation, protection of sources of water supply, regulating offensive trades, callings and practices and watching and evaluating the progress of the execution of programmes in respect thereof;
- (v) formulation of the proposal for the establishment of hospitals, primary health centres or sub-centres in the district;
- (vi) watching and evaluating the family welfare programmes in the district and suggesting various measures for its proper implementation;
- (vii) watching and evaluating the programmes for the control of epidemics;
- (viii) formulating proposals for maintenance, expansions and betterment of educational facilities in the district and for promotion of physical culture;
- (ix) watching and evaluating the progress of construction, maintenance and supervision of primary and secondary schools in the district and also the schemes for providing education for all in the district; and
- (x) such powers, duties and functions as may be delegated to it by the Panchayat under Section 57.

23.

Powers, duties and functions of Krishi, Udyog Evam Nirman Samiti.

- The Krishi, Udyog Evam Nirman Samiti of a Zila Panchayat may exercise and shall perform the following powers, duties and functions-

- (i) such powers, duties and functions as are required to be exercised or performed by it by or under the Act;
- (ii) such powers, duties and functions as are specified in the second column of Schedule IV to the Act and against which the words "shall be exercised by the Krishi Udyog Evam Nirman Samiti" have been entered in the third column of the said Schedule;
- (iii) formulating proposals about the construction, reconstruction and repairs of civil works under the Panchayat and generally the maintenance and development of the value of immovable property vested in or entrusted to the management of the Panchayat;
- (iv) watching and evaluating the progress of the execution of programmes relating to the construction, reconstruction and maintenance of civil works of the Zila Panchayat or Kshettra Panchayats and rendering such technical assistance to the Kshettra Panchayats as they may required;
- (v) watching and evaluating the progress of schemes for agricultured extension, production, establishment and maintenance of godowns in the district;
- (vi) watching and evaluating the minor irrigation, water management and water development programmes in the district specially schemes for water distribution, development of sub-soil water, and watershed development in the district;
- (vii) watching and evaluating the schemes for improvement of breeds promotion of dairying, poultry and piggery;
- (viii) watching and evaluating the schemes of development of fisheries in irrigation works and schemes of development of minor forest produce, small scale industries and cottage and village industries and marketing of their produce: and
- (ix) such powers, duties and functions as may be delegated to it by the Panchayat under Section 57.

24.

Powers, duties and functions of Samta Samiti.

- Samta Samiti of a Zila Panchayat may exercise and shall perform the following powers, duties and functions-

- (i)  
planning, watching, supervising and evaluating the poverty alleviation programmes in the district:
- (ii)  
co-ordinating the poverty alleviation programmes with other departments and agencies;
- (iii)  
promoting, supervising social welfare programmes of old age and widow pension schemes, schemes for the welfare of handicapped and mentally retired people;
- (iv)  
promoting, watching and supervising the schemes for the welfare of the Scheduled Castes, the Scheduled Tribes and other weaker sections including women;
- (v)  
preparation of plans and implementation of schemes for social justice and schemes for establishment of works for the Scheduled Castes and the Scheduled Tribes and women;
- (vi)  
evaluating the progress of the implementation of land reform schemes; and
- (vii)  
such powers, duties and functions as may be delegated to it by the Panchayat under Section 57.

25.

Delegation of powers, duties and function by Karya Samiti of a Zila Panchayat to a sub-committee.

(1)

The Karya Samiti of a Zila Panchayat may, by resolution delegate, to any subcommittee appointed by it under Section 75 any of its powers, duties or functions not being a power, duty or function delegated to it by the Panchayat or not specified in the second column of Schedule IV to the Act against which the words "shall be exercised by the Karya Samiti" have been entered in the third column of the said Schedule.

(2)

No resolution passed under sub-rule (1) shall be cancelled unless a period of at least six months has elapsed since it was passed and except in the manner provided in sub-rule (1). The resolution cancelling earlier resolution shall state the reasons for the cancellation.

I

Form I

(See Rule 5)

Nomination Form for election of a member of..... Committee appointed under sub-section (1) of Section 64 of the U.P. Kshettra Panchayat and Zila Panchayat Adhiniyam, 1961

Name of Zila Panchayat.....

Name of Committee.....

1. Full Name of the candidate.....

2. Father's/Husband's name.....

3. Address.....

4. Full name and address of the proposer.....

5. Full name and address of the seconder.....

Signature of the Candidate

Signature of the Adhyaksha

Accepted/Rejected.

Reasons for rejection.

Date.....

Signature of Adhyaksha

Place.....

Form II

(See Rule 5)



List of validly nominated candidates for election as member of .....Committee appointed under sub section (1) of Section 64 of the U.P. Kshettra Panchayat and Zila Panchayat Adhiniyam, 1961

Name of Zila Panchayat.....

Name of Committee .....

Name of members to be elected.....

Serial No.

Name of candidates

1.

2.

3.

4.

5.

6.

etc.

Date :

Signature of Adhyaksha

Place :

Form III

(See Rule 8)

Counterfoil

Outerfoil (Front)

Zila Panchayat

Zila Panchayat

District

District

Election of member of Committee

Election of member of Committee

Serial No. on ballot paper.

Name

Preferences

1.2.3.etc.

Instruction :

1. The persons whose names are given on ballot paper have been nominated as candidates for election as members of Committee of Zila Panchayat.

2. The vote shall be recorded by placing the number 1 in the space, opposite the name of the candidate whom the voter chooses for his first preference and the Voter may, in addition, mark as many subsequent preferences as he wishes by placing the numbers 2, 3, 4, and so on in the space opposite the names of other candidates in order of preference.

Outerfoil (Back)

Serial number of ballot paper.

Form IV

(See Rule 14)

Declaration of result of election of members for.....Committee appointed under sub-section (1) of Section 64 of the U.P. Kshettra Panchayat and Zila Panchayat Adhiniyam, 1961

Name of Zila Panchayat.....

Name of Committee.....

Number of members to be elected.....

Serial No.

Name of candidates elected

- 1.
- 2.
- 3.
- 4.
- 5.
- 6.
- etc.

Date :

Signature of Adhyaksha

Place :

II

(See Rule 13)

Instruction for the Determination of Result

1. In this Schedule-

(1)

"Continuing candidate" means any candidate not elected and not excluded from the poll at any given time:

(2)

"count" means-

(a)

all the operations involved in the counting of the first preference recorded for candidates: or

(b)

all the operations involved in the transfer of the surplus of an elected candidate, or

(c)

all the operations involved in the transfer of the total value of votes of an excluded candidate;

(3)

"exhausted paper" means a ballot paper on which no further preference is recorded for a continuing candidate provided that paper shall be deemed to have become exhausted whenever-

(a)

the names of two or more candidates, whether continuing or not, or marked with the same figure and are next in order of preference; or

(b)

the name of the candidate next in order of preference whether continuing or not, is marked by a figure not following consecutively after some other figure on the ballot paper or by two or more figures;

(4)

"first preference" means the figure 1 opposite the name of a candidate; "second preference" means the figure 2 set opposite the name of a candidate; "third preference" means the figure 3 set opposite the name of a candidate, and so on;

(5)

"original vote" in relation to any candidate, means a vote derived from a ballot paper on which a first preference, is recorded for such candidate;

(6)

"surplus" means the number by which the value of the votes original and transferred, of any candidate exceeds the quota;

(7)

"transferred vote" in relation to any candidate, means a vote of the value or the part of the value of which is credited to such candidate and which is derived from a ballot paper on which a second or a subsequent preference is recorded for such candidate; and

(8)

"unexhausted paper" means a ballot paper on which a further preference is recorded for a continuing candidate.

2. Count and record the number of papers in each parcel referred to in clause (c) sub-rule (2) of Rule 12 and the total

number.

3. Credit to each candidate the value of the papers in his parcel. The value of every valid ballot paper shall be deemed to be 100.

4. Determine the quota sufficient to secure the return of a candidate at the election in the following manner :

(a)

divide the total by a number which exceeds by 1 the number of seats to be filled:

(b)

add the values credited to all the candidates under instruction No. 3 above;

(c)

add 1 to the quotient ignoring the remainder, if any and the resulting number is the quota.

5. If, at the end of any count at the end of the transfer of any parcel or sub-parcel of an excluded candidate, the value of ballot papers credited to a candidate is equal to, or greater than the quota, declare that candidate as elected.

6. (a) List the end of any count, the value of the ballot papers credited to a candidate is greater than the quota, transfer the surplus in accordance indicated on the ballot papers of that candidate as being next in order of the elector's preference.

(b)

If more than one candidate have a surplus, deal with the largest surplus and the others in order of magnitude :

Provided that every arising on the first count shall be dealt with before those arising on the second count and so on.

(c)

Where there are more surpluses than one to distribute and two or more surpluses are equal regard shall be had to the original voter of each candidate and the candidate for whom most original votes are recorded shall have his surplus first distributed; and if the values of their original votes are equal, decide by lot which candidate shall have his surplus first distributed.

(d)

(i)

If the surplus of, any candidate to be transferred arises from original votes only, examine all the papers in the parcel belonging to the candidate, divide the unexhausted papers into sub-parcels according to the next preferences recorded thereon and make a separate sub-parcel of the exhausted papers.

(ii)

Ascertain the value of the papers in each sub-parcel and of all the unexhausted papers.

(iii)

If the value of the unexhausted papers is equal to or less than the surplus, transfer all the unexhausted papers at the value at which they were received by candidate, whose surplus is being transferred.

(iv)

If the value of the unexhausted paper is greater than the surplus, transfer the sub-parcel or unexhausted papers, and ascertain the value at which each paper shall be transferred by dividing the surplus by the total number of unexhausted papers.

(e)

If the surplus of any candidate to be transferred arises from transferred as well as original votes, re-examine all the papers in the sub-parcels last transferred to the candidate, divide the unexhausted papers into sub-parcels according to the next preferences recorded thereon and then deal with the sub-parcels in the same manner as is provided in the case of sub-parcels referred to in (d) above.

(f)

Add the papers transferred to each candidate in the form of a sub-parcel to the papers already belonging to such candidate.

(g)

Set apart all papers in the parcel or sub-parcel of an elected candidate not transferred under instruction No. 6 as finally dealt with.

7. (a) If after all surpluses have been transferred as herein before provided, number of candidates elected is less than the required number, excludes from the poll the candidate lowest on the poll and distribute his unexhausted papers among the continuing candidates according to the next preferences recorded thereon; and set apart the exhausted

papers as finally dealt with.

(b)

Transfer first the papers containing original votes of an excluded candidate taking the transfer value of each paper as one hundred, and thereafter transfer the papers containing transferred votes of an excluded candidate in the order of the transfers in which, and the value at which, he obtained them.

(c)

Treat each of such transfers as a separate transfer but not as a separate count.

(d)

If, as a result of the transfer of papers, the value of votes obtained by a candidate is equal to or greater than the quota, complete the count then proceeding but do not transfer further papers to him.

(e)

Repeat the process indicated in this instruction on the successive exclusions, one after another, of the candidates lowest on the poll until such vacancy is filled either by the election of a candidate with the quota or as hereinafter provided.

(f)

If, at any time, it becomes necessary to exclude a candidate and two or more candidates have the same value of votes and are the lowest on the poll, have regard to the original votes on each candidate and exclude the candidate for whom lowest original votes are recorded; and if the values of their original votes are equal, exclude the candidate with the smallest value at the earliest count at which these candidates had unequal values.

(g)

If two or more candidates are lowest on the poll and each has the same value of votes at all counts, decide by lot which candidate shall be excluded.

8. (a) When at the end of any count, the number of continuing candidates is reduced to the number of vacancies remaining unfilled, declare the continuing candidates as elected.

(b)

When at the end of any count only one vacancy remains unfilled and the value of the papers of some one candidate exceeds the total value of the papers of all the other continuing candidates together with any surplus not transferred declare that candidate as elected.

(c)

When at the end of any count only one vacancy remains unfilled and there are only two continuing candidates and each of them has the same value of votes and no surplus remains capable of transfer, decide by lot which of them shall be excluded; and after excluding him in the manner aforesaid, declare the other candidate to be elected.

9. In carrying out the instructions contained in paras 5 to 8 disregard all fractions and ignore all preferences recorded for candidates already elected or excluded.

10. An illustration of the procedure as to the counting of votes in accordance with these instructions is below :

Assume that there are seven members to be elected, sixteen candidates, and one hundred and forty electors.

The valid ballot papers are arranged in separate parcels according to the first preference recorded for each candidate, and the papers in each parcel counted.

Let it be assumed that the result is as follows :

A

...

12

B

...

8

C

...

6

D

...

9

|       |
|-------|
| E     |
| ...   |
| 10    |
| F     |
| ...   |
| 7     |
| G     |
| ...   |
| 4     |
| H     |
| ...   |
| 19    |
| I     |
| ...   |
| 13    |
| J     |
| ...   |
| 5     |
| K     |
| ...   |
| 14    |
| L     |
| ...   |
| 8     |
| M     |
| ...   |
| 10    |
| N     |
| ...   |
| 6     |
| O     |
| ...   |
| 4     |
| P     |
| ...   |
| 5     |
| Total |
| 140   |

Each valid ballot paper is deemed to be of the value of one hundred and values of the votes obtained by the respective candidates are as shown in first column of the result sheet.

The values of all the papers added together and the total 14,000 is divided by eight (i.e. the number which exceeds by one the number of vacancies to be filled) and 1,751 (i.e. the quotient 1,750 increased by one) is the number sufficient to secure the return of a number and is called the quota.

The operation may be shown thus :

$$\text{Quota} \mid 14,000 \mid + 1 = 1,750 + 1 = 1,751$$

The candidate H, the value of whose vote exceeds the quota; is declared elected.

As the value of the papers in H's parcel exceeds the quota, his surplus must be transferred. His surplus is 149, i.e. 1,900 less 1,751.

The surplus arises from original votes and therefore the whole of H's papers are divided into sub-parcels according to the next preferences recorded thereon, a separate parcel of the exhausted papers being also made. Let it be assumed that the result is as follows :

Papers

B is marked as next available preference

7

D is marked as next available preference on

4

E is marked as next available preference on

4

F is marked as next available on

3

Total of unexhausted papers

18

No. of exhausted papers

1

Total of papers

19

The value of the papers in the sub-parcels are as follows :

B

...

700

D

...

400

E

...

400

F

...

300

Total values unexhausted papers

1,800

Value of exhausted papers

100

Total value

1,900

The value of the unexhausted papers is 1,800 and is greater than the surplus. This surplus is therefore, transferred as follows :

All the unexhausted papers are transferred, but at a reduced value, which is ascertained by dividing surplus by the number of unexhausted papers.

The reduced value of all the papers, when added together, with the addition of any value lost as a result of the neglect of fractions, equals the surplus. In this case the new value of each paper transferred, is-

149 (the surplus)18 (the number of unexhausted papers).

the residue of the value of each paper ( $100-8 = 92$ ), being required by H for the purpose of constituting his quota, i.e. one exhausted paper value (100) plus the value (1,656) of 18 unexhausted papers.

These values of the sub-parcels transferred are :-

B = 56 (i.e., seven papers at the value of 8)

D = 32 (i.e., four papers at the value of 8)

E = 32 (i.e., four papers at the value of 8)

F = 24 (i.e., three papers at the value of 8)

These operations can be shown on a transfer sheet as follows :-

Transfer sheet

Value of surplus (H's) to be transferred

149  
 Number of papers in HBs parcel  
 19  
 Value of each paper in parcel  
 100  
 Number of unexhausted papers  
 18  
 Value of unexhausted papers  
 1,800  
 New surplus value of each paper transferred  
 149 \_\_\_\_\_ =8

Number of unexhausted papers 18  
 Name of candidates marked as the next  
 available preference

Numbers of papers to be transferred  
 Value of sub-parcel to be transferred

1  
 2  
 3  
 B  
 7  
 56  
 D  
 4  
 32  
 E  
 4  
 32  
 F  
 3  
 24  
 Total...

18  
 144  
 Number of exhausted papers  
 1

...  
 Loss of value owing to neglect of fractions.

...  
 5  
 Total ...  
 19  
 149

The value of the sub-parcels are added to the values of the already credited to the candidates B, D, E and F. This operation is shown on the result sheet.

There being no further surplus, the candidate, lowest on the poll has now to be excluded G and bog both have 400.

The Returning Officer casts lots and G is chosen to be excluded.

Being original votes, B's papers are transferred at the value of 100 each A, who was marked as next preference on two papers received 200, while D and E were each next preference on one paper and receiving 100 each. O, now being lowest is next excluded and his 400 is similarly transferred to I, B and K, I receiving 200 and B and K 100 each.

This leaves J and P lowest with 500 each and J is chosen by lot for exclusion first. His papers are transferred at the

value 100 of each to A, B, D and I the three first named receiving 100 each and I who had the next preference on two papers receiving 200, P is then excluded and his papers are transferred to E, L and K, the two first named receiving 100 each, and K, who had the next preference or three papers receiving 300.

K now exceeds the quota and is declared elected.

Prior to further exclusion. K's surplus of 49 has to be distributed.

The sub-parcel last transferred to K, consisted 3 votes transferred at the value of 100 each. This sub-parcel is examined; there are no exhausted papers and B, F and I, are each next preference on one paper and one paper is transferred to each of them at a reduced value determined by dividing the surplus (49) by the number of unexhausted papers (3) B, F and I accordingly receive 16 each.

The process of exclusion is now proceeded with G and M have 600 each and C is chosen by lot for exclusion first. He has 6 original votes; B, D and E are each next preference on two papers and each receives 200. N is then excluded; A is next preference on 3 of his papers, and receives 300; F, I and I, are each next preference on one paper and receive 100 each.

This brings A and I above the quota and they are declared elected. Their surplus have now to be distributed and I's surplus which is the larger 65, is dealt with first.

The last sub-parcel transferred to I consisted of one paper transferred at the value of 100, D is next preference on this paper, and receives the whole surplus of 65.

As surplus of 49 is then dealt with. The last sub-parcel transferred to him consisted of 3 papers transferred at the value of 100 each. B was next preference on two of these papers and E on one and the papers are transferred accordingly. The value to be transferred is 16 per paper i.e., the surplus (49) divided by number of the unexhausted (3), B accordingly receives 32 and E 16.

No other candidate having reached the quota, the process of exclusions is proceeded with and F who is now lowest with 840, is excluded.

His seven original votes are transferred first B, D and E next preference on three, two and two papers respectively, and respectively 300, 200 and 200.

The transferred votes are next transferred in the order of their transfers to F. The 3 votes received as the distribution of H's surplus are transferred at the same value to I, who next preference on all three papers. The voted at sixteen received by F at the distribution of K's surplus goes at the same value to M who was next preference on that paper. The vote transferred at the value of 100 on the exclusion of N is then transferred at the same value to D who thus receives total of 300.

No continuing candidate having yet reached the surplus N. who is now lowest with 1,016 is excluded.

His ten original votes are transferred first, B and D are first preference on three papers each and E and L on two each. V and D accordingly receive 300 each, and E and L 200 each. This bring, B.D and E, above the quota, and they are declared elected. The requisite number of candidate having now been elected, the election is end and it is unnecessary to proceed to the transfer of M's transferred vote.

Full details are shown in the result sheet:

Value of votes 14,000      Result sheet      Quota| 14,0008| + 1 = 1,751

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Translation